

DISSENTING OPINION BY LORD FINLAY.

I regret that I am unable to agree with the Judgment which has just been delivered, so far as it relates to the Jerusalem Concessions. Three conditions must be fulfilled in order that the jurisdiction of the Permanent Court under Article 26 of the Mandate should be compulsory. The dispute must be a dispute between the Mandatory and another Member of the League of Nations, it must be a dispute which cannot be settled by negotiation, and it must be a dispute relating to the interpretation or the application of the provisions of the Mandate. In my opinion none of these conditions are fulfilled in the present case.

I.

The Permanent Court takes cognisance only of disputes between nations. It has no jurisdiction to deal with a dispute one of the Parties to which is an individual.

Article 26 is express on this head. Its provisions apply only if a dispute as to the Mandate has arisen between the Mandatory and another Member of the League of Nations. Of course, there are many cases in which a genuine dispute between two nations has originated in a wrong alleged to have been done to the subject of one of these two nations by the other. Out of the dispute between the individual and the State which is alleged to have committed the wrong there may develop a dispute between the two nations. Many international disputes of great gravity have originated in this way. It is obvious that Article 26 has reference to genuine international disputes only and that any attempt to bring its provisions into play with reference to claims of individuals against the Mandatory requires to be carefully watched.

It is a mistake to suppose that Article 26 can be made applicable to a dispute between an individual and a mandatory State merely by the intervention, as litigant, of the government of which that individual is a subject. To justify proceedings under Article 26, there must have been in existence before the *Requête* was filed a dispute between the Mandatory and another nation Member of the League of Nations.

Was there such an international dispute in the present case?

The concessions to M. Mavrommatis dated from early in 1914, and in 1921 he urged the Government of Palestine to give effect to them. A very long correspondence followed in which M. Mavrommatis and his solicitors urged his rights in respect of these concessions upon the British Colonial Office. He also got friends to write privately to persons in the British Foreign Office upon the subject. One of the letters so written, dated January 26th, 1924, was from a M. Collas who is stated to be in the Greek Foreign Office and was addressed to some person in the British Foreign Office. M. Collas in this letter asked whether his correspondent could let him know the views of His Majesty's Government about M. Mavrommatis' claim, and whether in their opinion M. Mavrommatis' claim could not be satisfactorily met. M. Collas added that M. Mavrommatis' solicitors said that he would be prepared to submit the matter to a Court of Arbitration. With reference to this note from M. Collas the Foreign Office on April 1st, 1924, wrote to the Greek Legation stating that the Jerusalem Concessions could be dealt with only under the Concessions Protocol of the Treaty of Lausanne and were not suitable for arbitration, and that the Jaffa Concessions could not be recognised being subsequent in date to October 29th, 1914. *Supp. Corr. pp. 9 and 10*

On the same date, April 1st, 1924, Messrs. Westbury, Preston and Stavridi, M. Mavrommatis' Solicitors, wrote to the Greek Legation enclosing an opinion of M. Mavrommatis' Counsel, and said: *Ibid, pp. 1 and 11.* "From this you will see that in the opinion of Counsel, with which we entirely agree, the only way this question can be solved is by an appeal to the International Tribunal at The Hague, and on behalf of M. Mavrommatis we have the honour to suggest that steps should be taken for this submission to take place without delay." The enclosure in this letter contained a copy of an opinion of the same date given by Mr. Purchase, M. Mavrommatis' Counsel, which concludes thus: "We have tried every possible course, and now it would appear that the only way by which we can solve this question is to appeal to The Hague Tribunal under Articles 11 and 26 of the Mandate conferred upon Palestine by right of international law

and the Treaty of Lausanne. Such appeal cannot be lodged by virtue of the treaties but only by the Government of which M. Mavrommatis is a citizen. I therefore suggest that you should request the Greek Minister to cite the Colonial Office before the Hague Tribunal so that the matter can be adjudicated upon."

All this shows clearly that there was not any dispute between the Governments of Greece and Great Britain when the letter of May 12th, 1924, was written, and the *Requête introductive d'instance* was lodged. A dispute between an individual and Great Britain is one thing ; a dispute between the Government of that individual and Great Britain is quite another. There had been a long dispute between M. Mavrommatis and the British Government ; there had been no dispute between the Greek Government and the British Government.

It is only necessary to quote the first paragraph of the letter of May 12th, 1924, from the Greek Legation to the British Foreign Office. *Ibid.*, p. 13.

"With reference to your letter of April 1st, No. E. 2816/861/65, I have the honour to inform you by order of my Government, that an amicable arrangement having failed to be reached by His Britannic Majesty's Government giving adequate satisfaction to their national, they have arrived at the decision, in conformity with Article 26 of the prescriptions of the Mandate for Palestine of April 12th, 1922, to submit the case to the judgment of the Permanent Court of International Justice at The Hague."

We now know that this step was taken on the suggestion of M. Mavrommatis' solicitors merely to enable the Permanent Court to take cognisance of the claim against the British Government.

As I have said, there have been many cases in which a dispute between two States has arisen from the fact that an alleged wrong has been done by one of them to a citizen of the other. There was nothing of the kind here. There was no dispute between the two Governments. The Greek Government filed the *Requête* merely for the purpose of bringing M. Mavrommatis' claim within the jurisdiction of the Permanent Court. There was no dispute between the two Powers before the *Requête* was filed and it follows that the first condition required by Article 26 of the Mandate had not been satisfied.

II.

But even if it could be supposed that there was a dispute between the two Governments, the dispute was not one which could not be settled by negotiation. Efforts had been made by the agents of M. Mavrommatis to settle his dispute with the British Government ; no such efforts were made by the Greek Government. An effort made by an individual to get settlement of his claim against a foreign Government is one thing ; an effort made by his Government, having taken up his case, to effect a settlement of its dispute with the foreign government is another thing altogether.

It is said that it was of no use to try negotiations between the two Governments. I cannot see any ground for this assertion. It is a matter of common experience that governments frequently make a settlement of claims, the justice of which they do not acknowledge, and innumerable claims of the nature of the present have formed the subject of compromise. It is quite impossible to say that if the Greek Government had taken up the claim and, as a government, had pressed for a settlement, the negotiations might not have resulted in a settlement.

Article 26 does not make it a condition to the jurisdiction of the Court that there should have been negotiations with a view to settling the dispute between the two Powers, but it does make it a condition that the dispute is one which cannot be settled by negotiation. There may be some exceptional cases in which it can be predicated that from special circumstances it is obvious that negotiations would be a mere waste of time, but the present is not such a case. If the Government of Greece had really taken up the Mavrommatis matter and made it a subject of negotiation with Great Britain, who can say that a settlement would not have been arrived at ?

The right to sue under Article 26 is carefully confined to nations. The Court must not deal with the Mandate in such a way that in practice any individual, the subject of a State Member of the League of Nations, who makes a claim against a Mandatory, based on some alleged infraction of the terms of the Mandate, can invoke the compulsory jurisdiction of the Permanent Court, merely by getting his own Government to file a *Requête* ; anything of this kind might lead to many abuses. A State which has undertaken a Mandate

under the League of Nations has gratuitously taken upon itself a very arduous task and full effect must be given to the provisions of the Mandate for the protection of the Mandatory from litigation on any lines other than those laid down in the Mandate. The effect of the judgment of the Court in the present case might be to fritter these precautions away.

III.

The jurisdiction of the Permanent Court rests upon consent, and without consent there is no jurisdiction over any State. The consent may be by special agreement (*compromis*) in a particular case, or general. In the present case the British Government objects to the jurisdiction, but it is claimed that such a general consent is to be found in the Mandate for Palestine, under Article 26 combined with Article 11.

I shall presently consider the effect of Article 11, but it is desirable in the first instance to consider the meaning and effect of Article 26 in itself.

Article 26.

“The Mandatory agrees that, if any dispute whatever should arise between the Mandatory and another Member of the League of Nations relating to the interpretation or the application of the provisions of the Mandate, such dispute, if it cannot be settled by negotiation, shall be submitted to the Permanent Court of International Justice provided for by Article 14 of the Covenant of the League of Nations.”

There can be no doubt as to the class of case which primarily, at all events, this article was intended to meet. There are a number of provisions of the Mandate under which it is highly probable that questions may arise between different Members of the League of Nations. Article 5 forbids placing any Palestine territory under the control of any foreign Power. Some Member of the League might allege that this provision had been violated to its prejudice. Article 9 provides that the judicial system of Palestine shall assure to foreigners as well as to natives a complete guarantee of their rights. Questions might arise at any time with another Member of the League as to whether the judicial system is so constituted as to afford this guarantee to its subjects. Article 18 forbids all

discrimination against the nationals of any State, Member of the League of Nations, or against the goods originating in or destined for any such State, and provides for freedom of transit across the mandated area. Questions may arise between the Mandatory and another Member of the League as to the observance of this article. The same observation applies to Article 19, which provides for adherence on behalf of Palestine to international conventions on the slave traffic, traffic in arms and ammunition, traffic in drugs, or relating to commercial equality, freedom of transit and navigation, aerial navigation and postal, telegraphic and wireless communication, or literary, artistic or industrial property; and so under Article 20 providing for co-operation in a common policy adopted by the League, for preventing and combating diseases of men, plants and animals. In this connection Article 21 must be mentioned. It provides for the enactment and execution of a law as to Antiquities. This law is to ensure equality of treatment of the nationals of all States Members of the League of Nations and under head (7) it is provided that in granting authorisations to excavate, the Administration of Palestine shall not act in such a way as to exclude avants of any nation without good grounds.

Under all these heads there are endless possibilities of dispute between the Mandatory and other Members of the League of Nations, and it was highly necessary that a Tribunal should be provided for the settlement of such disputes. Article 26 provides the Tribunal for this purpose.

The dispute in the present case is as to the alleged failure by the British Government as Mandatory to recognise the rights of M. Mavrommatis in respect of certain concessions in Palestine. This can be brought within the compulsory jurisdiction provided for in Article 26 only if it relates to the interpretation or the application of the provisions of the Mandate. The dispute here has obviously nothing to do with any of the provisions of the Mandate primarily contemplated in Article 26, and to which I have already referred. It is, however, contended for the claimant that Article 11 of the Mandate contains provisions which have been infringed by the action of the Mandatory as regards these concessions and that for this reason the case falls under Article 26. Article 11 is as follows :

Article II.

"The Administration of Palestine shall take all necessary measures to safeguard the interests of the community in connection with the development of the country, and, subject to any international obligations accepted by the Mandatory, shall have full power to provide for public ownership or control of any of the natural resources of the country or of the public works, services and utilities established or to be established therein. It shall introduce a land system appropriate to the needs of the country, having regard, among other things, to the desirability of promoting the close settlement and intensive cultivation of the land.

"The Administration may arrange with the Jewish Agency mentioned in Article 4 to construct or operate, upon fair and equitable terms, any public works, services and utilities, and to develop any of the natural resources of the country, in so far as these matters are not directly undertaken by the Administration. Any such arrangements shall provide that no profits distributed by such agency, directly or indirectly, shall exceed a reasonable rate of interest on the capital, and any further profits shall be utilised by it for the benefit of the country in a manner approved by the Administration."

The French version agrees with the English and I refer to it only on one point on which it is slightly clearer. The English words "or of the public works, services and utilities established, or to be established therein" are rendered *ou des travaux et services d'utilité publique déjà établis ou à y établir*. The words whether in French or English denote works or services of public utility such as railways, provision for supply of water, gas, electricity, etc.

Protocol XII to the Treaty of Lausanne deals with Turkish Concessions such as those of M. Mavrommatis in Palestine. By Article I such concessions duly entered into before October 29th, 1914, are maintained, but subject to certain conditions, hereinafter referred to, contained in Articles 4, 5 and 6 and relating amongst other things to adaptation of such concessions to the new economic conditions.

The charge made against the British Government as Mandatory

is that it refused to give effect to the Mavrommatis Concessions and granted concessions covering in part the same ground to one Rutenberg. The Greek Government says that, if established, this would amount to a breach of the provisions of the Mandate, and that this would give the Court compulsory jurisdiction under Article 26. Great Britain denies this. This put shortly is the question which has been raised and discussed very fully on the Preliminary Objection.

For the Greek Government it is contended that the case falls under Article 11 of the Mandate in virtue of the words in the first sentence "subject to any international obligations accepted by the Mandatory". It is said that these words incorporated into Article 11 the provisions of the Lausanne Protocol XII, so that for the purposes of Article 26 that Protocol must be regarded as part of Article 11 of the Mandate, and that the grant of the Rutenberg Concession was an exercise of the power conferred in the first sentence of Article 11 to provide for public ownership or control and was in breach of the Protocol which recognises the Mavrommatis Concessions subject to certain conditions. It was further alleged that the granting of the Rutenberg Concession amounted to an arrangement made by the Administration of Palestine with the Zionist Organisation within the terms of paragraph 2 of Article 11 and that the words reserving international obligations in the first sentence should be read into paragraph 2.

This in broad outline is the case made against the British Government on the question of jurisdiction. I proceed to examine it in detail.

The words relied on as showing that there has been a breach of the provisions of the Mandate within Article 26 are the following : "subject to any international obligations accepted by the Mandatory". An examination of the article shows conclusively that these words constitute merely a limitation which is attached to one only of the powers conferred on the Mandatory by Article 11, namely the power to provide for public ownership or control of any of the natural resources of the country or of the public works, services and utilities established or to be established therein.

It will be observed that Article 11 begins with a general statement as to one duty imposed on the Administration of Palestine. This is contained in the initial words "The Administration of Palestine shall take all necessary measures to safeguard the interests of the community in connection with the development of the country". These words are a statement of principle and provide that in the development of the country the interests of the community are not to be sacrificed to those of individuals and that all measures necessary to safeguard the interests of the community are to be taken by the Administration.

Article 11 then proceeds to deal specifically with the work of the Administration and its powers under three heads. (1) The public ownership or control of natural resources or public works, etc. therein : this is closely connected with the statement of principle which precedes it and is dealt with in the concluding words of the same sentence. — (2) The introduction of a Land System (second sentence of the article). — (3) Arrangements with the Zionist Organisation for the construction or operation of public works, etc. or development of natural resources (paragraph 2).

I take these heads in their order. (1) The words which deal with the first head are the following : — "and subject to any international obligations accepted by the Mandatory", the Administration "shall have full power to provide for public ownership or control of any of the natural resources of the country, or of public works, services and utilities established or to be established therein".

We have been informed that in the draft of the Mandate the reservation at the beginning of these words ran thus : "subject to the provisions of Article 311 of the Treaty of Peace with Turkey", i.e. the Treaty of Sèvres. It became, however, obvious that the Treaty of Sèvres would never be allowed to take effect and to avoid delay in the completion of the Mandate for Palestine the reference to the Treaty of Sèvres was replaced by the words "subject to any international obligations accepted by the Mandatory", words which would be applicable to the provisions of the Treaty which was expected to replace that of Sèvres.

Article 311 of the Treaty of Sèvres dealt with concessions in countries like Palestine detached from Turkey to be placed under the authority or tutelage of one of the Principal Allied Powers. It provided in substance that concessions granted before October

29th, 1914, should be maintained subject, however, to power to buy out any concession contrary to the public interest, compensation being paid in the manner provided ; there was further provision for adaptation of the contract to the new economic conditions. Article 311 of the Treaty of Sèvres is now replaced by Protocol XII of the Treaty of Lausanne which deals with the same subject. It is obvious that the "international obligations accepted by the Mandatory" referred to in Article 11 are primarily, at all events, the provisions of Protocol XII of the Treaty of Lausanne. It would also include any other relevant international obligations but it does not appear that there are any others.

It is quite impossible to apply these words, "international obligations accepted", to international law either generally or in any particular respect. The words obviously refer to conventional obligations by treaty or other agreement ; provisions of international law do not require acceptance to be binding but are binding by the sanction on which all international law rests, the general consent of nations. The words "accepted by the Mandatory" show that the "international obligations" referred to are contractual, that is by treaty or convention, and reference is clearly made to the provisions which were expected to replace the Treaty of Sèvres and in particular Article 311.

It may be said, why make a particular reservation for these international obligations ? They are binding, it might be said, by force of the treaty or convention which created them, and which has been accepted by the Mandatory. The answer is clear. These words are introduced to show beyond doubt that the grant of the power to "provide for public ownership or control" is not to be exercised in a manner inconsistent with treaty obligations which the Mandatory has accepted. If the words of reservation had been left out it might have been plausibly argued that power was conferred on the Administration of Palestine to override any such obligations. Without these words of reservation the clause have run thus : the Administration "shall have full power to provide for public ownership or control of any of the natural resources of the country or of the public works, services and utilities established or to be estab-

lished therein". It would have been said, if the Mandate had been thus worded, that the Administration might exercise this power to acquire as public property or to assume public control, unfettered by international obligations even if they had been accepted by the Mandatory. Nothing of the kind was intended, and, to make this clear beyond doubt, these words were inserted to show that the power conferred was subject to such obligations as had been accepted by the Mandatory. These words impose a restriction upon the power of acquisition or control conferred on the Administration by the first sentence of Article 11; it is to be subject to treaty obligations which have been accepted by the Mandatory.

These words of reservation apply only to the first head of the powers conferred by Article 11, namely, the power of acquisition of public property or control; they have no application to heads 2 and 3 which relate respectively to the introduction of a Land System and to arrangements to be made with the Zionist Organisation. With reference to both these last heads such words would be surplusage. No one could suppose for a moment that the power to introduce a Land System or to make arrangements with the Zionist Organisation could confer any authority to disregard the terms of any international obligations; any existing treaty might be enforced by the sanctions appropriate to treaties. But, as I have pointed out, if "full power to provide for public ownership or control" had been conferred *simpliciter* upon the Administration of Palestine, it might have been supposed that this was meant to empower the Administration to "nationalise" irrespective of treaty obligations. It was very proper under head (1) to make the reservation; under heads (2) and (3) it was wholly superfluous.

If the Administration of Palestine had provided for public ownership or control of any of the natural resources of the country or of public works, etc., in a manner which involved the disregard of international obligations accepted by the Mandatory, there would have been an infraction of Article 11 which might have been submitted to the Permanent Court at the instance of any Member of

the League of Nations under Article 26. The property would have been acquired or the control assumed contrary to Article 11, because Article 11 confers the power to acquire such property or control only in accordance with international obligations accepted. Here nothing of the kind took place. The Administration of Palestine has not made as to the subjects of the Mavrommatis concessions any provision for public ownership or control within the meaning of the first sentence of Article 11. The granting of concessions is not an exercise of the first power in Article 11 nor is their annulment, unless it forms part of a process of nationalisation by making the subject public property or putting it under public control. It has been contended that Article 28 of the Rutenberg concessions for the supply of electricity within the Palestine area showed an assumption of public control within the meaning of the first sentence of Article 11 of the Mandate. This suggestion does not bear examination. The article provides that the undertaking of the Company shall be recognised as a Public Utility Body under Government control and all the installations and property of the undertaking shall receive protection as such. This provision does not vest the management in the Government to any extent ; it merely recognizes the right of the Government to assume control if the public interest demands it. The management remains in the Company until the power is exercised. The existence of the power does not constitute an assumption of public control within the meaning of Article 11.

*Annex to
Mémoire of
Greek Gov.
p. 35, p. 48.*

In the judgment of the Court is this connection great stress is laid upon a passage on page 5 of the Preliminary Counter-Case which runs as follows :

“The concessions granted to M. Rutenberg in September 1921, for the development of electrical energy and water-power in Palestine (Annex to the Greek Case, pp. 21—52) were obliged to conform to this Article 11, and it would have been open to any Member of the League to question provisions in those concessions which infringed the international obligations which His Britannic Majesty as Mandatory for Palestine had accepted.”

It is perfectly true that any party to an international obligation accepted by the Mandatory and therefore binding on Palestine

might have complained if that international obligation had been infringed by any concession. The right so to complain would not have been confined to Members of the League, — any party to a treaty may take steps to prevent its violation or to obtain redress. I have called attention to the provisions of Article 11 in detail and have shown that the reservation in the first sentence only applies to cases in which provision is made for public ownership or control and that no such provision is made in the Rutenberg concessions. It follows that the right to object to any infringement of international obligations in such concessions would rest not on the reservation in the first sentence of Article 11, but on the rights which every Party to a treaty has by international law.

It must be remembered that this passage in the argument cannot have been written with reference to the distinction between mere international engagements and international engagements which have been incorporated with and form part of the Mandate. It was only at a later stage of the case that the controversy on this point arose. It appears to me that language employed under such circumstances cannot be treated as an admission on a point that was not then under consideration. Article 11 must be construed according to its true meaning: The so-called "declaration" is merely part of an argument and would, I doubt not, have been differently expressed if the point now at issue had been then developed.

The second head of Article 11 provides for the introduction by the Administration of Palestine of a Land System. There is nothing said under this head as to existing international obligations for the reason I have indicated. It must not, however, for a moment be supposed that the Administration could proceed with a Land System at variance with international obligations without laying itself open to all the proceedings by which international obligations are enforced. Any such action might lead to diplomatic representation and give ground for any steps which the aggrieved Power might think proper to take. But it could not be brought compulsorily before the Permanent Court under Article 26, because there would be no violation of the provisions of the Mandate.

And so of the third head of powers under Article 11, as to arran-

gements with the Zionist Organisation. If any such arrangements amounted to an infringement of an international obligation, any Power interested might proceed by remonstrance and by all the steps which are taken to bring pressure to bear upon an offending State. The difference might by consent, general or special, be disposed of by the Permanent Court; it could not be brought compulsorily before the Court under Article 26.

I have already referred to the conditions with regard to the readaptation of concessions which are contained in Protocol XII to the Treaty of Lausanne. Article 6 of that Protocol provides that beneficiaries under concessionary contracts "which have not on the date to this Protocol" (July 24th, 1923) "begun to be put into operation (or as it stands in the French version, *qui n'auraient pas reçu à la date de ce jour un commencement d'application*) cannot avail themselves of the provisions of this Protocol relating to readaptation. It was on this point that the negotiations between M. Mavrommatis and the British Government broke down. The contention of M. Mavrommatis was that these words were satisfied by the deposit of plans and of security, while the British Government maintained that they require that the execution of the works should have been begun. In the judgment of the Court (p. 29) it stated that this question was one as to the interpretation of Article 11 of the Mandate and that Article 26 applied to it. The question depends entirely on the construction of the Protocol and the view that it falls to be decided under Article 26 must depend on the application of the doctrine of incorporation of the Protocol into Article 11 of the Mandate. It seems to me that the proposal to make any such application supplies a forcible illustration of the fallacy underlying the whole doctrine of incorporation as applied to this case. The Protocol is no part of the Mandate for any purpose; it is referred to in the first sentence of Article 11 merely by way of limiting the power of acquiring public property or control there conferred. With these conditions have nothing to do. I cannot accept the view that Article 11 of the Mandate is to be read as if it contained *in extenso* the provisions of the Protocol. The difference on this point was one which, if it had existed between the two Governments, might have been submitted to the Permanent Court by consent; it could not have been compulsorily referred under Article 26.

M. Politis in his argument for the Greek Government suggested that Great Britain could be made liable on the ground that in making the concessions to M. Rutenberg they were entering into an arrangement with the Jewish Agency under paragraph 2 of Article II and that the arrangement was in violation of the international obligations referred to in the first sentence of that article.

This suggestion is not borne out by the terms of the Mandate. Paragraph 2 of Article II relates to arrangements to be made by the Administration with the Jewish Agency mentioned in Article 4 of the Mandate. By that article a Jewish Agency is to be recognised as a public body for the purpose of advising and co-operating with the Administration as to matters affecting the Jewish population in Palestine "and subject always to the control of the Administration to assist and take part in the development of the country." The Zionist Organisation, so long as the Mandatory thinks its organisation and constitution appropriate, is to be recognised as such agency. The arrangement mentioned in paragraph 2 is to be with this public body. The arrangement is to be for the construction or operation of public works, etc. or for the development of the natural resources of the country "in so far as these matters are not directly undertaken by the Administration". The fact that the memorandum and articles of the Rutenberg Concession for electricity, etc. were to be approved by the High Commissioner in agreement with the Jewish Agency (see Clause 2 of the Agreement of September 21st, 1921) cannot be regarded as such an arrangement. *Annex, p. 36.* Any arrangement under paragraph 2 of Article II was to be for construction or operation of public works, etc. or for development of the country's resources, and was to be for an undertaking in which profits might be made by the Jewish Agency, as is shown by the last sentence of Article II. There is nothing to show that any such arrangement was ever entered into. In the first place, the concession to M. Rutenberg was not an arrangement with the Zionist Agency. And, in the second place, it is quite impossible, for the reasons I have already given, to read into the second paragraph the reservation in the first sentence of Article II. The judgment quotes a passage from the speech of the British Agent as containing an admission that the reservation in the first sentence is to be read into paragraph 2. What is said in this passage is that the reservation is so natural that it ought to be implied in the second para-

graph. The stipulations of any treaties would of course apply to anything done under paragraph 2. But they would apply simply as treaties, not in virtue of the reservation which applies and can apply only to the power conferred in the first sentence—they could not be made the subject of proceedings under Article 26—but could be enforced like all treaties by representations with the possible exercise of force in the background. The difference between these two things was immaterial for the purpose of the point with which the British Agent was then dealing — it is vital for the purposes of the present controversy. I venture to refer to what I have already said with reference to a quotation from the British Preliminary Counter-case in a similar connection.

The statement in the judgment, that the Parties appear to have agreed in admitting that the reservation in the first sentence of Article 11 applies to the second paragraph appears to me to be a mistaken inference from the passages quoted from the British Counter-case and the British Agent's speech upon which I have commented already.

The whole question of Article 11 may be summed up in a very few words.

Article 11 does not prescribe that the terms of the international obligations referred to shall be observed ; what it does prescribe is that public property or control shall not be established in violation of the terms of such obligations. The difference between these two things is vital and as soon as it is appreciated all difficulty as to Article 11 disappears. The mere violation of an international obligation does not constitute a breach of Article 11 ; it is only if the first power conferred by Article 11 is exercised in violation of the international obligation that there is an infraction of the terms of the Mandate.

FOR THESE REASONS, in my opinion, the Court has no jurisdiction to deal with this case.

(Signed) FINLAY.
